

Criminal Misc.No.7406-B/2014

Muhammad Nazir alias Zahoor Ahmad alias Jhoora

The State etc.

01.10.2014. M/s Bashir Ahmad Qureshi and Zubair Afzal Rana, Advocates for the petitioners.
Mr.Muhammad Nasim Akhter, DDPP with Aslam, SI.
Rai M. Hussain Khan Kharal, Advocate for the complainant.

Through this single order, I intend to decide two bail petitions i.e. Crl.Misc.No.7406-B/2014 titled as “Muhammad Nazir alias Zahoor Ahmad alias Jhoora v. The State etc” & Crl.Misc.No.11685-B/2014 having title of “Muhammad Amir etc v. The State etc” as both are outcome of one and same FIR.

2. The petitioners Muhammad Nazir alias Zahoor Ahmad alias Jhoora, Muhammad Amir and Ali Raza seek their post arrest bail in case FIR No.566-2013 dated 20.10.2013, under Sections 302, 324, 148, 149, 109 PPC, registered at Police Station, Badami Bagh, Lahore.

3. Briefly stated the prosecution story as narrated in FIR is that petitioners along with other co-accused persons while armed with fire arm weapons started firing upon complainant party, resulting into death of Mussarat Bibi and Muhammad Khalid whereas Najma Bibi and Muhammad Latif got serious injuries.

4. Arguments heard and record perused.

5. It is straightway noticed that in the instant case Muhammad Nazir alias Zahoor Ahmad alias Jhoora as well as Ali Raza-petitioner No.2 in (Crl.Misc.No.11685-B of 2014) are not nominated in the FIR. Both the petitioners have joined the investigation before the first Investigating Officer, who

deferred their arrest. Later on, investigation was conducted by the second Investigating Officer on 06.04.2014 and when the accused persons were arrested and while preparing memo of arrest, it was rendered as Muhammad Nazir alias Zahoor alias Jhoora and son of Amir was stated to be Ali Raza-petitioner No.2 in (Crl.Misc.No.11685-B of 2014). It is relevant to mention here that petitioner-Muhammad Nazir alias Zahoor Ahmad alias Jhoora is complainant of FIR. No.41-2010 dated 18.01.2010, registered under Sections 302, 324, 148, 149 PPC, at Police Station, Shad Bagh, Lahore against two brothers of present complainant namely Shaukat alias Shauki and Latif alias Pappu, therefore, question of mis-identification of the accused or not knowing correctly the name of the petitioner does not arise in such circumstances, which also makes the case of petitioner-Muhammad Nazir alias Zahoor Ahmad alias Jhoora one of further inquiry. Interestingly both the eye witnesses namely Muhammad Akram along with Muhammad Sher and injured-PWs namely Najma Bibi and Muhammad Latif categorically named one of the assailants as Zahoor alias Jhoora in their statements under Section 161 of Cr.P.C., recorded on 20.10.2013 and name of son of Amir was not mentioned therein. The allegation leveled in the FIR against the petitioners is generalized and collective, no specific injury is attributed to the petitioners therein according to the contents of FIR and in statements of both the injured, it is not clear that whose fire shot hit both the deceased-Muhammad Khalid & Musarrat Bibi and injured namely Muhammad Latif & Najma Bibi. In this regard reliance is placed on the judgment of Hon'ble Supreme Court of Pakistan reported as **"Muhammad Shakeel v. The State and others"** (PLD 2014 SC 458). During investigation, nothing had been recovered from the petitioners. It is also found from the police record, that petitioners were arrested on 06.04.2014 and during investigation, the Investigating Officer came to the

conclusion that petitioners were innocent and they were not present at the place of occurrence and report for their discharge from the case was prepared on 21.04.2014 but same was not agreed to by the Magistrate concerned. Thereafter the Investigating Officer prepared challan and by putting the petitioners on the mercy of court submitted report under Section 173 of Cr.P.C., it appears that there is no reason to believe that the petitioners have committed any cognizable offence, which makes the case of petitioners one of further inquiry into their guilt. Although opinion of police is not binding upon this Court but still it is a relevant circumstance to be taken into consideration while deciding the bail applications. The Hon'ble Supreme Court of Pakistan in a case reported as "***Ghulam Rasool v. The State***" (1982 SCMR 440) has held that:-

"Sufficient weight is to be attached to the result of investigation particularly when an accused is placed in column No.2 on account of it".

6. For the reasons supra, I am of the affirm view that allegation levelled against the petitioners needs further probe and inquiry, which falls within the ambit of sub-Section (2) of Section 497 of Cr.P.C.

7. **Resultantly**, both petitions are accepted and petitioners-Muhammad Nazir alias Zahoor Ahmad alias Jhoora, Muhammad Amir & Ali Raza are **admitted** to post arrest bail subject to their furnishing bail bonds in the sum of Rs.1,00,000/- each with one surety in the like amount to the satisfaction of learned trial court.

(Aalia Neelum)
Judge

Approved for reporting.